

THE ACCESS GAP

Penalized for Non-Ability

A Plain Language Guide

For People With Disabilities and the People Who Support Them



This guide is for everyone.

If you have a disability — this explains what is happening in simple words.

If you support someone with a disability — this shows you how to explain it to them.

Every section has a **green box** at the bottom. That green box gives you exact words to use.

Alberta Disability System Breakdown — May 2026

PAGE 1 — WHAT IS "ACCESS"?



ACCESS MEANS YOU CAN ACTUALLY USE THE SYSTEM.

The government has rules about how people with disabilities can get help. Those rules say the system has to work for the people it is for.

If the rules say a system is open — but you cannot use it because the forms are too hard, the calls go nowhere, or the answers are written in words you cannot understand — then the system is **not actually open to you**. That is what we mean by an **access gap**. The door is open. You cannot get through it.

Did You Know?

Canada signed an international agreement in 2010 (called the UNCRPD). It says the government has to make information and services usable for people with disabilities. Alberta also has a Human Rights Act that says the same thing.

■ HOW TO EXPLAIN THIS

Try saying this: "The government has rules that say their services have to be usable by people with disabilities. The system isn't broken by accident — it's breaking the rules."

PAGE 2 — THE TAX FILING TRAP



AISH IS NOT TAXED. BUT YOU STILL HAVE TO FILE EVERY YEAR.

This is one of the strangest rules in the system. AISH money is not taxed. That means if AISH is your only income, the government does not owe you a refund.

But you still have to file taxes every single year. If you don't, you can lose other benefits — like the Canada Disability Benefit — and AISH may treat you as breaking the rules. If you cannot file taxes by yourself, you have to pay someone to do it. That can cost \$80 to \$500.

Did You Know?

An AISH cheque at the maximum is \$1,901. If you pay \$150 to file taxes that get you no refund, you have just spent about 8% of one month's cheque to follow a rule that gives you nothing back.

■ HOW TO EXPLAIN THIS

Try saying this: "AISH is not taxed, so I do not get a refund. But the government still makes me file. If I cannot file myself, I have to pay someone — out of money I do not have."

PAGE 3 — THE FORM TRAP



MOST PEOPLE WHO START THE FORM CANNOT FINISH IT.

The federal government has a form called the **T2201**. It is needed for the Disability Tax Credit. The Disability Tax Credit is needed for the Canada Disability Benefit.

The form is 16 pages long. It uses words most adults cannot understand the first time. Part of it can only be filled in by a doctor — and the doctor can charge any amount. Some charge \$200. Some charge \$700. **The federal government's own committee says only 24 out of every 100 people who start this form online actually finish it.**

Did You Know?

650,000 people in Alberta do not have a family doctor. The form needs a doctor's signature. So even if you can read the form and pay the fee — you may not have a doctor to sign it.

■ HOW TO EXPLAIN THIS

Try saying this: "There is a federal form most disabled people cannot finish. The form has to be signed by a doctor. The doctor charges money. Hundreds of thousands of Albertans do not have a doctor. The whole system depends on this form."

PAGE 4 — WHEN THE SYSTEM SAYS YOU FAILED



THE SYSTEM CALLS IT YOUR FAULT. USUALLY IT IS NOT.

If you miss a deadline or do not finish a form, AISH may reduce or stop your money. When this happens, the program writes it down as **willful non-compliance**. That is a legal phrase. It means: "You knew the rules. You could follow them. You chose not to."

For most people, none of those three things are true. Maybe you did not get the notice. Maybe you got it but could not understand it. Maybe you tried, and the system itself was the thing that did not work. **None of those are willful. They are barriers. The system treats them all the same.**

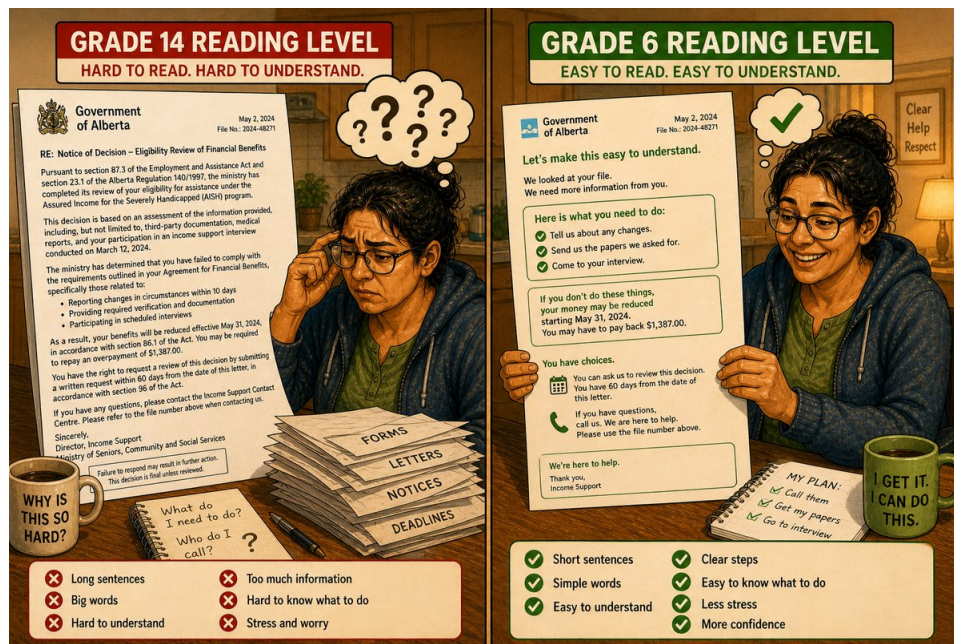
Did You Know?

There is no rule that says AISH has to check whether you needed accommodation before they cut your money. There should be. There is not.

■ HOW TO EXPLAIN THIS

Try saying this: "AISH said I did not follow the rules. But I did not get the notice on time, or I could not understand it, or I could not afford the form fee. That is not me choosing to break the rules. That is the system being unusable."

PAGE 5 — THE FORMS NO ONE CAN READ



THE FORMS ARE WRITTEN ABOVE WHAT MOST CANADIANS CAN READ.

The Government of Canada has a rule about plain language. It says public information should be written at a Grade 8 reading level or below — Grade 6 for people with cognitive disabilities.

Most AISH and ADAP forms are written at a Grade 12 to 16 reading level. That is university-level English. Statistics Canada says about half of all Canadian adults cannot read at that level easily. **If you cannot read the notice, you cannot follow it. If you cannot follow it, you get penalized.**

Did You Know?

More than 22,000 people on AISH have cognitive disabilities as their main diagnosis. The forms they have to fill in are written at a level even most non-disabled adults find hard.

■ HOW TO EXPLAIN THIS

Try saying this: "I'm not refusing to fill in the form. The form is written above what most people can read. The government has a rule that says it should be simpler. The form breaks that rule."

PAGE 6 — THE EXCUSES YOU MAY HEAR



THE EXCUSES ALL SAY THE SAME THING: IT'S YOUR PROBLEM.

When people say the system is unusable, they hear the same answers over and over. Each one moves the blame onto the disabled person.

"Use AI." Most people on AISH do not have the technology. **"Educate yourself."** Asking disabled people to overcome their disability before getting help is the opposite of help. **"Ask family or friends."** Most AISH recipients live alone. **"Call the office."** The caseworker system was replaced by a call centre that does not respond to general inquiries. **"Request accommodation."** The accommodation form needs the same skills the original form needed.

Did You Know?

Every excuse moves the responsibility for the system's failure onto the person the system is failing. None of them require the system to actually become usable.

■ HOW TO EXPLAIN THIS

Try saying this: "I have heard all the suggestions. I have tried them. The problem is not that I have not tried hard enough. The problem is the system is not built for the people it is supposed to serve."

PAGE 7 — IS THIS ON PURPOSE?



ATTRITION IS A POLICY. IT JUST DOES NOT GET CALLED ONE.

It is fair to ask: are these problems an accident, or are they planned? We cannot prove what is in anyone's mind. But we can look at what is happening.

The caseworker system was replaced with a call centre. 76% of people cannot finish the federal disability form. Alberta is the only province clawing back the Canada Disability Benefit. Bill 12 removed appeal rights. ADAP will reassess everyone without publishing the rules. **Together, they form a pattern. People are being removed without any official decision. They simply cannot keep up.**

Did You Know?

There is a name for this. It is called "administrative attrition" — when government programs shrink not by changing the rules openly, but by making the rules so hard to follow that people drop out.

■ HOW TO EXPLAIN THIS

Try saying this: "The government did not announce that they were cutting AISH. They just made the rules so hard that people are losing their benefits anyway. The result is the same."

PAGE 8 — THE LAW IS ON YOUR SIDE



WHAT IS HAPPENING IS AGAINST THE LAW. KNOW THE LAWS.

Three laws say the disability system has to be usable by disabled people.

The **Alberta Human Rights Act** says the government cannot discriminate against disabled people in services, and has a duty to make services usable. The **Canadian Charter of Rights — Section 15** says everyone is equal under the law, including people with mental and physical disabilities. The **UN Convention on the Rights of Persons with Disabilities** (signed by Canada in 2010) says government information has to be in formats people with disabilities can use.

When the system is unusable, that is not just unfair. It may be illegal.

Did You Know?

Filing a Human Rights complaint in Alberta is free. You do not need a lawyer. You can call the Alberta Human Rights Commission for help with your complaint.

■ HOW TO EXPLAIN THIS

Try saying this: "Three different laws say the disability system has to be usable. The system is breaking those laws. I am not asking for a favour. I am asking the government to follow its own rules."

PAGE 9 — WHAT WOULD MAKE IT BETTER



ACCESSIBLE IS NOT IMPOSSIBLE. OTHER PLACES ALREADY DO IT.

None of these fixes are difficult. They are not new ideas. Other places already do them.

Rewrite all forms at a Grade 6 reading level. Bring back named caseworkers. Cover doctor fees for forms. Provide free help filing taxes. Stop the Canada Disability Benefit clawback. Bring back independent appeal rights. Do an accessibility check before any benefit cut. Create a disability access ombudsperson with real power.

The barrier to fixing this is not money. It is not technology. It is the absence of political pressure to do it.

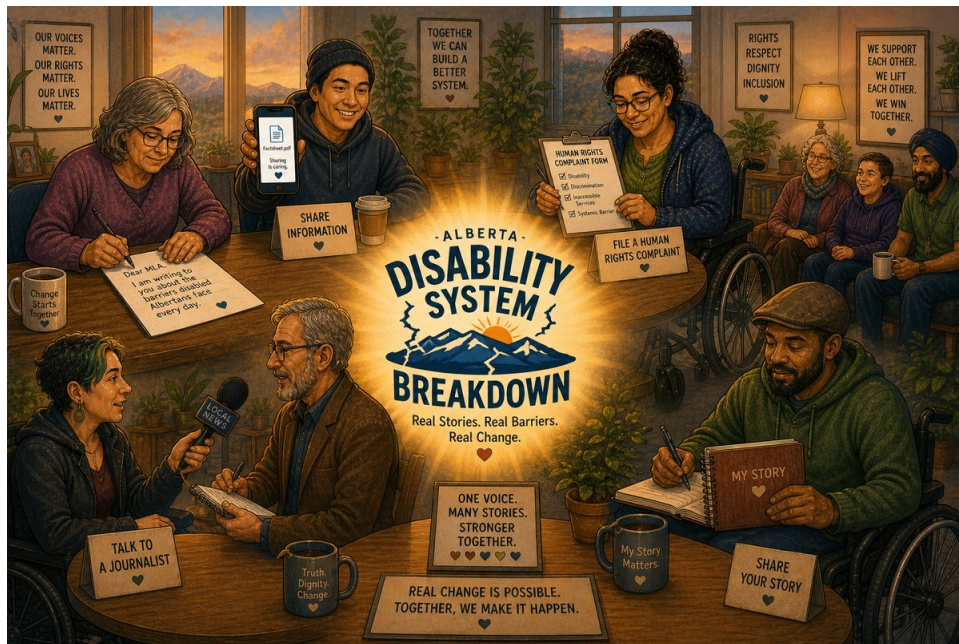
Did You Know?

Plain-language redesign of government forms has been done in the United Kingdom, Sweden, New Zealand, and parts of the United States. It works. It costs less than the system spends now on managing failed compliance.

■ HOW TO EXPLAIN THIS

Try saying this: "There are real fixes for this. Other places have done them. The reason it is not happening here is not that it cannot be done. It is that no one is making the government do it."

PAGE 10 — WHAT YOU CAN DO



EVERY VOICE BUILDS THE RECORD. EVERY ACTION HELPS.

You do not have to do everything. You just have to do something.

1. Write down what happened to you. Date, time, the rule, the barrier. The record is what makes legal change possible. **2. File a complaint.** Alberta Human Rights Commission. Alberta Ombudsman. Office of the Advocate for Persons with Disabilities. Free. **3. Share your story.** The Alberta Disability System Breakdown collects personal accounts. **4. Write to your MLA.** The campaign has fillable letter templates. **5. Share this guide.** Print it. Email it. Hand it to a friend.

Did You Know?

Everything in this guide is also at the website. All the templates, all the reports, all the audio recordings. Free to use. Free to share. Free to print.

■ HOW TO EXPLAIN THIS

Try saying this: "I am not waiting for someone else to fix this. I am writing it down. I am filing a complaint. I am telling my MLA. The record is being built. I am part of it."

THE TAKEAWAY



THE SYSTEM IS NOT BROKEN BY ACCIDENT. IT CAN BE FIXED.

The Access Gap is the difference between what the system says and what the system does.

On paper, AISH and the federal disability programs are open to everyone who qualifies. In real life, the people who qualify cannot use them — because the forms are too hard, the rules are too many, the doctors are too few, and the help is too far away.

When people fail to keep up, the system says they were not trying. The truth is: the system was never built for them in the first place.

That is the gap. That is what this guide is about. That is what we are working to close.

The Alberta Disability System Breakdown

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